

RESOLUTION OF RIGHTS PROCEDURE

Considering the complaint filed on September 7, 2023, before this Agency by A.A.A. (hereinafter the complainant), against the GENERAL DIRECTORATE OF POLICE (hereinafter the respondent), for not having duly attended to their request to exercise the rights established in Organic Law 7/2021, of May 26, on the protection of personal data processed for the purposes of prevention, detection, investigation, and prosecution of criminal offenses and enforcement of criminal sanctions (hereinafter, LO 7/2021).

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), applicable to the processing of the present complaint, in accordance with Article 52.2 of LO 7/2021, the following has been established:

FACTS

FIRST: The complainant exercised the right of Access against the respondent without their request having received the legally established response, as stated by the respondent.

The complainant states that, with an entry registration dated September 4, 2023, they requested access to their police records held in the PERPOL processing system and, on September 6, 2023, received a letter confirming that there are no records relating to them in that processing. In this regard, they express their disagreement with the response received and allege that they must have three police records, having been detained on two occasions.

Furthermore, they state that they requested access to their police records to provide them as evidence in a judicial proceeding.

On the other hand, they refer that on the same day, September 6, 2023, they filed complaints regarding the letter received. And, with an entry registration date of September 10, 2023, they again requested the right of access to their police records, receiving on September 11 another letter where they were provided with a report indicating two police records.

Finally, they point out that in the first record, it states that they were detained on September 24, 2023, having actually been detained on September 23 of the same month.

They consider that their right has been improperly attended to, having received falsified documentation.

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SECOND: Once the procedure established in Article 65.4 of the LOPDGDD was fulfilled, the complaint was admitted for processing, and the respondent was granted a hearing period, to present any allegations they deemed appropriate within ten working days.

The respondent replies to this Agency referring to what has already been previously answered to the complainant and considered insufficient.

THIRD: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within ten working days, they may formulate any allegations they consider appropriate. The complainant, during the allegations period, provides documentation exchanged both with the respondent and with this Agency.

LEGAL GROUNDS

I

Competence

FIRST: The Director of the AEPD is competent to resolve this matter, in accordance with the provisions of Article 48 of the aforementioned LO 7/2021, and as provided in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 65.4 of the LOPDGDD, which has established a

mechanism prior to the admission for processing of complaints filed before the Spanish Agency for Data Protection, which consists of forwarding them to the data protection officers designated by the controllers or processors of the data, for the purposes provided in Article 37 of the aforementioned regulation, or to them when they have not been designated, so that they proceed to analyze such complaints and respond within one month, prior to the admission for processing of the complaint that gives rise to this procedure, the same was forwarded to the responsible entity for them to analyze it, respond to this Agency within one month, and prove that they have provided the complainant with the due response, in the event of exercising the rights regulated in Articles 21, 22, and 23 of LO 7/2021. On January 5, 2024, for the purposes provided in Article 64.2 of the LOPDGDD, the complaint presented was admitted for processing. This admission agreement determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 22 and 23 of LO 7/2021, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

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THIRD: The rights of individuals regarding the protection of personal data, when the processing of data is aimed at the purposes indicated in Article 1 of LO 7/2021, are regulated in Articles 21, 22, and 23 of said regulation. These articles establish the information that must be made available to the data subject and recognize the rights of access, rectification, deletion, and limitation of processing.

The formal aspects related to the exercise of these rights are established in Article 20 of LO 7/2021.

The communication addressed to the data subject in connection with their request must be expressed in a concise, intelligible, easily accessible manner, and with clear and simple language for all individuals, including those with disabilities.

FOURTH: Article 22. Right of access of the data subject to their personal data.

1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed. In the event that processing is confirmed, the data subject shall have the right to access such personal data, as well as the following information:

- a) The purposes and legal basis of the processing.
- b) The categories of personal data concerned.
- c) The recipients or categories of recipients to whom the personal data have been disclosed, in particular, the recipients established in countries that are not members of the European Union or international organizations.
- d) The retention period of the personal data, when possible, or, if not, the criteria used to determine such period.
- e) The existence of the right to request from the data controller the rectification or deletion of personal data concerning the data subject or the limitation of its processing.
- f) The right to lodge a complaint with the competent data protection authority and the contact details of the same.
- g) The communication of the personal data subject to processing, as well as any available information regarding its origin, without revealing the identity of any natural person, especially in the case of confidential sources.

2. When the controller processes a large amount of information concerning the data subject and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may require the data subject to specify the request within ten days.

3. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure system that permanently guarantees access to all their personal data. The notification informing the data subject of the procedure initiated through this system will allow the denial of their access request made by other means. If remote access does not...

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If the interested party provides all the information contained in section 1, they will have the right to request it.

4. When the interested party chooses a means other than the one offered that entails a disproportionate cost, the request will be considered excessive, and the interested party will assume the excess cost that their choice entails. In this case, the data controller will only be required to ensure that the satisfaction of the right of access through the proposed means occurs without undue delay. If the interested party does not assume the excess cost, access will be provided through the means initially proposed by the data controller.

V

Conclusion

We will begin by stating that this claim is resolved regarding the requested right of access. The right of rectification referred to by the claimant has already been demonstrated throughout the procedure to have been addressed.

Therefore, aside from the right of access, in this case to the police records, the remaining pending issues between the parties will be excluded from this resolution.

The claimant requests access to their police records, and the responding party first states that they have nothing regarding this, and later acknowledges the error and provides part of what was requested. Specifically, as the claimant themselves acknowledges, two records out of the three requested.

The responding party, aware of this request, does not state anything regarding access to the third police record requested and not addressed, neither to provide it nor to deny it with justification.

Since a copy of the necessary communication that must be directed to the claimant informing them about the decision made, in this case regarding access to the third police record requested, is not attached, it is appropriate to uphold the claim that initiated this procedure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by A.A.A. against the GENERAL DIRECTORATE OF POLICE with NIF S2816015H, so that, within ten working days following the notification of this resolution, they send to the claimant a certification addressing the exercised right of access or denying it with justification indicating the reasons why it is not appropriate to address it, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in article 58.m) of LO 7/2021, which will be sanctioned in accordance with article 77 of LOPDGDD.

SECOND: NOTIFY this resolution to A.A.A. and to the GENERAL DIRECTORATE OF POLICE.

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In accordance with the provisions established in article 50 of LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of

LOPDGDD, and in accordance with the provisions established in article 123 of LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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